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Case Number: 25CHCV00356 Hearing Date: July 21, 2026 Dept: F43

Dept. F43

Hearing Date: 07-21-26

Case # 25CHCV00356, Jefferson v.

Cole Hill, et al.

Trial Date: 01-16-29

DEMURRER AND MOTION TO
STRIKE

MOVING PARTY: Defendant Susan Cole Hill

RESPONDING PARTY: Plaintiff Francois Jefferson

RELIEF REQUESTED

Order sustaining defendant Cole Hill's
demurrer to the Second Amended Complaint's fourth, seventh, and eighth causes
of action.

Order striking punitive damages from the
Second Amended Complaints first, second, third, fourth, sixth, seventh, and
eighth causes of action and the prayer from relief.

RULING: Demurrer is sustained with leave to
amend. Motion to strike is moot.

SUMMARY OF ACTION

On January 29, 2025, plaintiff Francois

Jefferson (Plaintiff) filed this personal injury action against defendants

Susan Cole Hill (Hill) and Tyson Kilmer, asserting eight causes of action: (1) assault;

(2) battery; (3) intentional

infliction of emotional distress; (4)

false imprisonment; (5) negligence; (6) premises liability; (7) violation of the Unruh Civil Rights Act,

Civ. Code, § 51; and (8) violation of

the Bane Act, Civ. Code, § 52.1.

Defendant Hill previously filed a motion to strike punitive damages from

the Complaint. The court granted the

motion in part for the Seventh and Eighth Causes of Action and denied in part

for the First, Second, Third, Fourth, Fifth, and Sixth Causes of Action. (12/01/25 Minute Order.)

On December 30, 2025, Plaintiff filed and

served a First Amended Complaint (FAC), asserting the same causes of action. On March 4, 2025, defendant Hill demurred to

the FAC's Fourth, Sixth, Seventh, and Eighth Causes of Action and moved to

strike punitive damages from the FAC's first, second, third, fourth, fifth,

sixth, seventh, and eighth causes of action.

This court is sustained the demurrer in part as to the fourth, seventh,

and eighth causes of action but overruled in part as to the sixth cause of

action. The court granted the motion to

strike as to the fourth, seventh, and eighth causes of action and denied the

motion as to the first, second, third, fifth, and sixth causes of action. The court also granted leave to amend within

thirty days of the order. (4/24/26

Minute Order.)

Plaintiff filed a Second Amended Complaint

(SAC) on May 7, 2026, asserting the same causes of action against defendants

Hill and Kilmer but asserting new "aiding and abetting" allegations.

On June 8, 2026, defendant Hill filed the

instant demurrer to the Second Amended Complaint's Fourth, Seventh, and Eighth

Causes of Action for failing to sufficiently allege causes of action and for

being uncertain, ambiguous, and unintelligible.

Defendant Hill also moves to strike punitive damages from the Third, Fourth,

Seventh, and Eighth Causes of Action (Paragraphs 40,[1] 48, 86,

99) and the Prayer for Relief (page 21 at line 25, page 22 at line 7). Plaintiff filed oppositions on July 8, 2026, and defendant Hill replied on July 14, 2026.

MEET AND CONFER

Demurrers and motions to strike must be accompanied by a "meet and confer" declaration stating that the parties met and conferred "in person, by telephone, or by video conference" and stating that (1) the parties failed to reach an agreement resolving the issues raised in the demurrer and motion to strike; or (2) that the party who filed the pleading subject to the demurrer or motion to strike failed to respond to the meet and confer request or failed to meet and confer in good faith. (Code Civ. Proc., §§ 430.41, subd. (a)(3), 435.5, subd. (a)(3).) In Department F43, meet and confer means in person or via phone, not by letter or email. (Department F43 Courtroom Information, p. 2.)

The "meet and confer" requirement is met because counsel spoke by telephone on June 8, 2026. (Declaration of Noorhan Buttres ¶ 5.)

REQUESTS FOR JUDICIAL NOTICE

Plaintiff asks the court to take judicial notice of the following pursuant to Evidence Code sections 452 and 453:

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Exhibit 1: This court's Minute Order entered on December 1, 2025.

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Exhibit 2: This court's Minute Order entered on April 8, 2026.

The court grants Plaintiff's request pursuant to Evidence Code section 452, subdivision (d).

THE SECOND AMENDED COMPLAINT'S ALLEGATIONS

Defendant Hill owned, operated, and

controlled the property located at 18782 Fairfield Road in Porter Ranch, CA 91326 (the Property). (SAC ¶ 2.) Hill employed defendant Kilmer, who also resided at the Property as a houseguest. (Id. ¶¶ 3-4, 14.)

On February 3, 2023, Plaintiff, a Black man, was at the Property at the invitation of defendant Hill. (SAC ¶¶ 15, 72.) That same day, defendant Kilmer was also on the Property. (Id. ¶ 16.) At some point, Kilmer became intoxicated and violent, and committed an unprovoked attack on Plaintiff, striking Plaintiff with his fists with the intent to cause bodily injury to Plaintiff. (Id. ¶ 15.) Kilmer also deprived Plaintiff of his freedom of movement and confined Plaintiff by using physical barriers and force, threats of force, menace, fraud, deceit, or unreasonable duress. (Id. ¶ 42.) Plaintiff feared further harm if he attempted to leave the Property and remained on the Property. (Id. ¶ 42.) Plaintiff also alleges Kilmer, Hill, and other Doe defendants interfered with his constitutional and statutory rights: (1) protection from bodily restrain and harm pursuant to Civil Code section 43; (2) to be free and independent, and to enjoy and defend life and liberty and to pursue and obtain safety, happiness, and privacy as secured by Article I, Section 1 of the California Constitution; and (3) to be free from hate crimes as set forth in Penal Code sections 422.55, 422.6, and 11410. (Id. ¶ 92.)

Before the unprovoked attack, defendant Hill knew Kilmer had a predisposition and propensity to engage in violent, racially motivated attacks against Plaintiff and other Black invitees. (SAC ¶¶ 77-78.) Hill also warned Kilmer several times to “stay in his lane,” demonstrating Hill knew about Kilmer’s discriminatory predisposition to deny and abridge Plaintiff’s civil rights. (Id. ¶ 78.) Furthermore, Hill had actual knowledge of Kilmer’s violent and discriminatory conduct because she personally witnessed at least one prior unprovoked attack and racial outburst by Kilmer toward Plaintiff, and other witnesses specifically told Hill about the other incidents. (Id. ¶ 76.)

Despite Hill’s prior knowledge concerning Kilmer’s conduct, Hill aided, abetted, incentivized, and ratified Kilmer’s discriminatory predisposition, violence toward Plaintiff, and Kilmer’s intentional confinement, restraining of Plaintiff, and denying Plaintiff equal accommodations and privileges. (SAC ¶¶ 43, 47, 74, 80, 88, 98.) Hill provided substantial assistance and encouragement to Kilmer by condoning Kilmer’s conduct and failing to intervene, continuing to employ, house, and assign Kilmer to interact with invitees to the Property, continuing to drink alcohol with Kilmer, and encouraging him to remain on the Property in contact with Plaintiff. (Id. ¶¶ 43, 47, 77, 85, 98.)

As a result, Plaintiff suffered damages to his body and nervous system and incurred medical and incidental expenses. (SAC ¶¶ 5, 8, 15, 24.)

ANALYSIS

A. Demurrer

A party may respond to a pleading against it by demurrer based on one or more of eight enumerated grounds, including that “the pleading does not state facts sufficient to constitute a cause of action” and is uncertain, meaning “ambiguous and unintelligible.” (Code Civ. Proc., § 430.10, subds. (e), (f).) The grounds for demurring must be apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

The purpose of a demurrer is to challenge the sufficiency of a pleading “by raising questions of law.” (*Postley v. Harvey* (1984) 153 Cal.App.3d 280, 286.) “In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties.” (Code Civ. Proc., § 452.) The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law[.]” (*Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (*Picton v. Anderson Union High School Dist.* (1996) 50 Cal.App.4th 726, 733.)

1. Fourth Cause of Action: False Imprisonment

To establish the tort of “false imprisonment,” the complaint must allege “the nonconsensual, intentional confinement of a person, without lawful privilege, for an appreciable length of time, however short.” (*Fermino v. Fedco, Inc.* (1994) 7 Cal.4th 701, 715, citation omitted.)

“Restraint may be effectuated by means of physical force, threat of force or of arrest, confinement by physical barriers, or by means of any other form of unreasonable duress.” (*Ibid.*) “The only mental state required to be shown

to prove false imprisonment is the intent to confine, or to create a similar intrusion.” (Id., at p. 716 [first citing *Moffat v. Buffums’ Inc.* (1937) 21 Cal.App.2d 371, 374; then citing *Vandiveer v. Charters* (1930) 110 Cal.App. 347, 351; then citing *Schanafelt v. Seaboard Finance Co.* (1951) 108 Cal.App.2d 420, 423; and then citing Rest.2d Torts, § 40A].)

Plaintiff newly alleges an aiding and abetting theory of liability against Hill. (SAC ¶¶ 42-43.)

To establish an “aiding and abetting” claim for false imprisonment, the plaintiff must allege both the underlying elements of civil false imprisonment and the elements of aiding and abetting liability. Based on a common law rule from the Restatement (Second) of Torts section 876, there are two alternative pathways for aiding and abetting liability. “Liability may also be imposed on one who aids and abets the commission of an intentional tort if the person (a) knows the other’s conduct constitutes a breach of duty and gives substantial assistance or encouragement to the other to so act or (b) gives substantial assistance to the other in accomplishing a tortious result and the person’s own conduct, separately considered, constitutes a breach of duty to the third person.” (Saunders v. Superior Court (1994) 27 Cal.App.4th 832, 846, [Rest.2d Torts, § 876, subds. (b), (c)]; see also *American Master Lease, LLC v. Idanta Partners, Ltd.* (2014) 225 Cal.App.4th 1451, 1477-1478.)

Plaintiff fails to allege facts concerning the first theory (knowledge of Kilmer’s breach of duty and substantial assistance) because Plaintiff does not state a duty which Kilmer owed and that Hill gave substantial assistance or encouragement in breaching as to the Fourth Cause of Action. The Second Amended Complaint fails to mention any duty of care until the Fifth and Sixth causes of action. At most, Plaintiff alleges Hill provided Kilmer with alcohol on the day of the incident and failed to intervene in the incident despite knowing Kilmer’s history of violence when drunk. Plaintiff alleges no other facts demonstrating ratification concerning false imprisonment. (SAC ¶¶ 43, 37.)

Plaintiff’s allegations also fail as to the second theory (substantial assistance and defendant Hill’s independent breach of duty). Plaintiff alleges no independent duty owed by Hill to Plaintiff which Hill breached by giving Kilmer alcohol and failing to intervene in the incident as to the Fourth Cause of Action. Plaintiff’s general factual allegations and false imprisonment allegations as to defendant Hill are primarily conclusory

without more.

Plaintiff alleges Hill "aided, abetted, incentivized, and ratified Defendant Kilmer and Does 11 through 20's intentional confinement and restrain of Plaintiff by use of physical barriers and/or force, threats of force, menace, fraud, deceit, or unreasonable duress, as described above." (SAC ¶ 42.) Hill "gave substantial assistance and/or encouragement to, Kilmer, and Does 11 through 20 to commit all tortious, violent, and discriminatory acts described herein, and, thus, the conduct of Hill, and Does 1 through 10, was a substantial factor in causing harm to Plaintiff." (Id. ¶ 43.) Plaintiff further alleges Hill ratified Kilmer's tortious conduct by training and incentivizing her employees to use unreasonably violent force in the course and scope of providing house services but fails to list the incentives. (Id. ¶ 46.) Furthermore, Plaintiff alleges Hill knew that false imprisonment was being or going to be committed by Kilmer and still provided substantial assistance to Kilmer in carrying out the false imprisonment. (Id. ¶ 47.)

The court struggles to connect Plaintiff's "fear of further harm" with his claims of confinement. (SAC ¶ 42.) Plaintiff alleges Kilmer beat him due to his status as Black man and because Kilmer was drunk, but at the same time Plaintiff feared further harm for attempting to leave and avoid further attacks (Id.) Nothing Plaintiff's allegations establishes Kilmer acted in a manner where if Plaintiff attempted to leave, Kilmer would further harm him. Thus, it is unclear how Kilmer's violent acts confined Plaintiff to the Property. Although restraint may be effectuated through physical force, physical barriers, or other forms of unreasonable duress (*Fermino v. Fedco, Inc.* (1994) 7 Cal.4th 701-715-716), it is unclear how Kilmer effectuated such confinement to a particular space. (See Rest.2d Torts, § 40A, illustration (2) ["A, the owner of a store, for the purpose of preventing B, a customer, from leaving the store, but without any privilege to do so, seizes and retains B's purse, which contains a large sum of money. B reasonably believes that he can leave the store only at the risk of losing the purse and the money, and therefore remains in the store. A has confined B."].)

Therefore, the court sustains defendant Hill's demurrer to the Second Amended Complaint's Fourth Cause of Action.

The court grants Plaintiff one more opportunity to amend

the Fourth Cause of Action.

2. Seventh

Cause of Action: Violation of Civil Code

§ 51 et seq. (Unruh Civil Rights Act)

The Unruh Civil Rights Act (UCRA) requires all business establishments to provide “full and equal accommodations, advantages, facilities, privileges, or services” to all persons within the jurisdiction of California regardless of certain protected characteristics, including disabilities. (Civ. Code, § 51, subd. (b).)

To establish “intentional discrimination” under UCRA, the plaintiff must allege facts demonstrating that (1) the defendant is a business establishment; (2) the plaintiff was denied full and equal access to accommodations, advantages, facilities, privileges, or services; (3) the denial was based on a protected characteristic listed in the statute; and (4) the discrimination was intentional. (Martinez v. Cot’n Wash, Inc. (2022) 81 Cal.App.5th 1026, 1036.) The conduct must be “willful, affirmative misconduct with the specific intent to accomplish discrimination in a business establishment on the basis of a protected trait.” (Id., at p. 1036, citations omitted; Civ. Code, § 51, subd. (b) [protected characteristics include sex, race, color, ancestry, and national origin].)

Plaintiff alleges he is a member of a protected class, a Black man, and that defendants Kilmer and Hill knew he is and was a member of such a protected class. (SAC ¶¶ 72-73; Civ. Code, § 51, subd. (b) [discrimination based on “race” and “color”].) The alleged incident occurred while Plaintiff was at defendant Hill’s Property, with each defendant denying him full and equal accommodations by intentionally discriminating against him based on his “race and color.” (SAC ¶¶ 79-81.)

Defendant Hill challenges whether Plaintiff has adequately alleged a “business establishment” because Plaintiff alleges the conduct occurred at a private residence.

The UCRA applies where an entity’s “activities reasonably could be found to constitute a business establishment.” (Brennon B. v. Superior Court (2022) 13 Cal.5th 662, 678 [quoting Warfield v. Peninsula Golf & Country Club (1995) 10 Cal.4th 594, 615]; Civ. Code,

§§ 51, 52.) The entity must “effectively operate as a business or a commercial enterprise or ‘engage[] in behavior involving sufficient ‘businesslike attributes’” such as the sale of goods and services to the public. (See *id.* at p. 681. See generally, e.g., *Warfield v. Peninsula Golf & Country Club* (1989) 214 Cal.App.3d 646, 655 [“operates a restaurant and bar and recreational facilities for its members and their guests and also leases its facilities to others”]; *Payne v. Anaheim Memorial Med. Center, Inc.* (2005) 130 Cal.App.4th 729, 732-733 [“operates the hospital as a business enterprise which offers its facilities to qualified physicians, who are not its employees, in exchange for fees and other considerations”]; *Liapes v. Facebook, Inc.* (2023) 95 Cal.App.5th 910, 916, 925-924 [social media site provides is a social networking service with over two billion monthly users, companies pay Facebook to place ads on users’ News Feeds, and over 98 percent of its revenue comes from advertisers].)

Here, Plaintiff alleges Hill employed Kilmer to provide “house services” at the Property. (SAC ¶¶ 4, 25, 84.) Plaintiff does not state what these services entailed and does not deny the Property is a private residence. Instead, Plaintiff states the precise, structure, scope, and commercial character of Hill’s business will reveal itself during discovery. (Opposition at p. 6:7-11.) At most, Plaintiff’s allegation is ambiguous and does not clarify whether Kilmer was employed to provide services as a housekeeper to Hill or as a housekeeper to Hill and all invitees and guests. Considering Plaintiff refers to himself as an invitee (SAC ¶ 15) but does not distinguish between a business invitee versus a public invitee, the court seeks further clarification concerning the specific services Hill offered and for what purpose she hired Kilmer. (See *O’Keefe v. South End Rowing Club* (1966) 64 Cal.2d 729, 739-740 [discussing the difference between invitees according to the Restatement Second of Torts section 332]; see also *Hoffmann v. Young* (2022) 13 Cal.5th 1257.) Thus, the SAC fails to clearly allege a “business establishment” for the purposes of a UCRA violation.

Without further information concerning Hill’s “business establishment,” the court cannot determine how Hill denied Plaintiff full and equal accommodations as Plaintiff has not stated the specific accommodations which were denied.

Plaintiff does allege discriminatory conduct by Kilmer as well as Hill's ratification of said conduct.

According to Plaintiff, Kilmer discriminated against him by committing unprovoked, violent, and threatening acts toward Plaintiff while he was a lawful guest at the business, by physically accosting Plaintiff and directing racially derogatory language and slurs at Plaintiff because of Plaintiff's race. (SAC ¶ 75.) These attacks occurred before February 3, 2023. (Id.)

Hill had actual knowledge of Kilmer's violent and racially discriminatory conduct toward Plaintiff prior to February 3, 2023, because she personally witnessed at least one of Kilmer's prior attacks and racial outbursts towards Plaintiff and other witnesses told her about the incident. (SAC ¶ 76.) Hill also knew about Kilmer's discriminatory predisposition and propensity to deny and abridge Plaintiff's civil rights, because Hill told Kilmer several times to "stay in his lane." (Id. ¶ 78.) It is unclear how this phrase demonstrates Hill's actual knowledge of Kilmer's supposed discriminatory predisposition.

Despite her actual knowledge of the prior incident and Kilmer's discriminatory predisposition and propensity to engage in violent, racially motivated attacks against Plaintiff and other Black invitees (SAC ¶¶ 76, 78), Hill ratified Kilmer's conduct by continuing to employ, house, and assign Kilmer to interact with invitees at the Property and encouraging Kilmer to remain on the Property in contact with Plaintiff. (Id. ¶¶ 77-78, 84-85.) But the court is unclear concerning whether Hill continued to employ, house, and encourage Kilmer after the February 3, 2023, incident. This would serve as a clear indication of ratification.

The court fails to find a connection between Hill providing Kilmer with alcoholic beverages prior to the incident and offering him alcohol on the day of the incident. (See SAC ¶¶ 15, 16-17.) Although Plaintiff alleges Kilmer was intoxicated and aggressive during the February 3, 2023, incident, Plaintiff fails to demonstrate that Kilmer was intoxicated during his prior attacks on Plaintiff and that Hill knew Kilmer would become aggressive when intoxicated.

Moreover, Hill's other conduct, continuing to employ, house, and assign Kilmer to interact with invitees at the Property and

encouraging Kilmer to remain on the Property in contact with Plaintiff, despite witnessing and knowing about the prior racially motivated attacks, demonstrates Hill's prior notice and aiding and abetting of Kilmer's discriminatory conduct by continuing to employ him and provide him with various resources, without punishment. This demonstrates ratification of Kilmer's prior conduct but does not demonstrate ratification of the February 3, 2023, incident, the basis of Plaintiff's causes of action.

Therefore, the court sustains defendant Hill's demurrer to the Second Amended Complaint's Seventh Cause of Action with leave to amend.

3. Eighth Cause of Action: Violation of Civil Code § 52.1 (Tom Bane Civil Rights Act)

To adequately plead a claim for a violation of the Tom Bane Civil Rights Act, plaintiff must allege (1) intentional interference or attempted interference with a state or federal constitutional or legal right, and (2) the interference or attempted interference was by threats, intimidation, or coercion." (Allen v. City of Sacramento (2015) 234 Cal.App.4th 41, 67, citations omitted.) Plaintiff must allege that defendant interfered with rights secured by the U.S. Constitution or laws of the United States or the California Constitution and laws of the state. (Civ. Code, § 52.1, subd. (b).) Plaintiff must allege actual "threats, intimidation, and coercion." (Julian v. Mission Community Hospital (2017) 11 Cal.App.5th 360, 395 [speech is insufficient].)

Plaintiff adequately alleges threats, intimidation, and violence as to defendant Kilmer based on his unprovoked attack on Plaintiff. (SAC, ¶¶ 15-16.) Plaintiff does not allege any threats, intimidation, or violence by Hill but does allege she "aided, incited, and otherwise engaged with Kilmer's discriminatory predisposition and propensity to threaten, intimidate, and commit acts of violence toward Plaintiff." (Id. ¶ 88.)

Plaintiff newly alleges Defendants interfered with three constitutional rights: (1) right of protection from bodily restraint and harm pursuant to Civil Code section 43; (2) right to be free and independent, and to enjoy and defend life and liberty and to pursue and obtain safety, happiness, and privacy as secured by Article I, Section 1 of the California Constitution; and (3) right to be free from

hate crimes as set forth in Penal Code sections 422.55, 422.6, and 11410. (SAC ¶ 92.) According to Plaintiff, Kilmer's and Hill's

conduct "intentionally interfered with, and/or attempted to interfere with [Plaintiff's] civil rights by threats, intimidation, or coercion" and intended to deprive Plaintiff of his enjoyment of the interests protected by the statutory and constitutional rights.

(SAC ¶¶ 91, 95.)

Civil Code section 52.1 requires a showing of "specific intent" to demonstrate interference with a protected right or at minimum acted in reckless disregard of such right.

(Cornell v. City and County of San Francisco (2017) 17

Cal.App.5th 766.) Cornell

established a two-prong for finding specific intent. The court must first determine as a matter of law whether the right at issue is clearly delineated and plainly applicable under the circumstances of the case. (Murchison

v. County of Tehama (2021) 69 Cal.App.5th 867, 896, citations omitted.) If the right is vague or novel, the specific intent standard cannot be satisfied. If

the first condition is satisfied, the jury must make a factual determination of whether the defendant committed the act in question with the particular purpose of depriving the victim of the enjoyment of the interests protected by that right. (Ibid.) Subjective

awareness of wrongdoing is not required, but reckless disregard of a clearly established right is sufficient.

Civil Code section 43 provides that every person,

"subject to the qualifications and restrictions provided by law, the right of protection from bodily restraint or harm, from personal insult, from defamation, and from injury to his personal relations." Court's have recognized this is a right private actors can violate. (Jones v.

Kmart Corp. (1998) 17 Cal.4th 329, 335-338.) Kilmer violated this right when he physically attacked Plaintiff and used racially derogatory language and slurs towards Plaintiff. (SAC ¶ 75.) Article I, Section 1 of the California

Constitution declares "[a]ll people are by nature free and independent and have inalienable rights, including enjoying and defending life and liberty and pursuing and obtaining safety, happiness, and privacy." This is also a valid basis for Kilmer's violent and threatening conduct against Plaintiff.

(Jones, supra, 17 Cal.4th at p. 336-338.)

Penal Code section 422.55 defines a "hate crime" as a

criminal act committed in whole or in part because of one or more actual or perceived characteristics of the victim, including race or ethnicity. (Pen. Code, § 422.55, subd. (a)(4).) Penal Code section 422.6 prohibits any

person, whether or not acting under color of law, by force or threat of force, willfully injuring, intimidating, interfering with, oppressing, or threatening any other person in the free exercise or enjoyment of a right secured by the Constitution or laws of this state or the United States, in whole or in part because of one or more actual or perceived characteristics of the victim listed in § 422.55. (Pen. Code, § 422.6, subd.

(a).) Section 422.6 is the criminal enforcement arm of the same Bane Act legislation that includes Civil Code section 52.1. Penal Code section 11410 is primarily a legislative findings and definitions section that declares the right of every person “to be secure and protected from fear, intimidation, and physical harm caused by the activities of violent groups and individuals.” (Pen. Code, § 11410, subd. (a).) Section 11410 does not itself create a

specific prohibition or penalty and does not independently constitute a clearly delineated right for Bane Act purposes. Section 11410’s definitions support the broader hate crime statutory scheme and can be read in conjunction with Sections 422.55 and 422.6 to inform the scope of the right to be free from hate crimes. As with the other two stated rights, Plaintiff has sufficiently alleged conduct by Kilmer demonstrating a specific intent to interfere with these rights as to Plaintiff.

Plaintiff alleges defendant Hill aided and abetted by providing substantial assistance and encouragement despite notice of his discriminatory and violent propensity, by failing to intervene, continuing to employ, house, and assign Kilmer to interact with invitees to the Property, continuing to drink alcohol with Kilmer, and encouraging him to remain on the Property in contact with Plaintiff. (SAC

¶¶ 43, 47, 77, 85, 90, 98.) Although this does not demonstrate a subjective intent to interfere with Plaintiff’s rights, defendant Hill’s conduct after witnessing the prior discriminatory attacks, her subsequent conduct (failing to intervene, continuing to employ, house, and assign Kilmer to interact with invitees, and encouraging Kilmer to remain on the Property in contact with Plaintiff) indicates some disregard for Plaintiff’s rights and the possibility that Hill might attack him again. As Plaintiff alleges, Kilmer attacked him on February 3, 2023. However, Plaintiff fails to demonstrate how Hill encouraged Kilmer to remain on the Property in contact with Plaintiff, whether through conduct or specific direction.

Thus, Plaintiff has not fully established defendant Hill's specific intent to interfere with his rights by aiding and abetting defendant Kilmer's conduct.

Finally, Plaintiff again alleges he had a right to be on the Property and be free from violent threats and intimidation. (SAC ¶ 89.) As with the court's previous ruling, Plaintiff's allegations suggest he may be a public invitee, business invitee, or visitor to "business property." And invitee's right to be on business property is established under common law rather than statutory or constitutional law. (Clawson v. Stockton Golf and Country Club (1963) 220 Cal.App.2d 886, 889, 890.) Plaintiff fails to reference a valid provision which codifies and confers such a right.

Therefore, the court sustains defendant Hill's demurrer to the Second Amended Complaint's Eighth Cause of Action with leave to amend.

B. Motion to Strike

"Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof." (Code Civ. Proc., § 435.) A court may, upon motion or at any time, strike from the complaint "any irrelevant, false, or improper matter" or "all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc., §§ 436, subds. (a)-(b), 187; Greshko v. County of Los Angeles (1987) 194 Cal.App.3d 822, 830 [noting the court's inherent power to limit the focus of the proceedings to the issues framed by the remaining viable pleadings].) An "irrelevant matter" is an allegation that "is not essential to the statement of a claim or defense," "is neither pertinent to nor supported by an otherwise sufficient claim or defense," or "a demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint." (Code Civ. Proc., § 431.10, subds. (b)-(c).) The court must read the factual allegations in the complaint as a whole and assume their truth. (Clawson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.)

Defendant Hill moves to strike punitive damages from the Second Amended Complaint:

Page 12, Paragraph 48;

Page 19, Paragraph 86;

Page 21, Paragraph 99;

Prayer for Relief, page 21, item
number 3 under the heading "ON FIRST, SECOND, THIRD, FOURTH, FIFTH, AND
SIXTH CAUSES OF ACTION" ("For punitive damages"); and

Prayer for Relief, page 22, item
number 6 under the heading "ON SEVENTH AND EIGHTH CAUSES OF ACTION" ("For
punitive damages").

Because the court sustained the demurrer to the Fourth,
Seventh, and Eighth Causes of Action, defendant Hill's motion to strike is moot.

CONCLUSION and ORDER

Demurrer to the Second Amended Complaint's
Fourth, Seventh, and Eighth Causes of Action is sustained with leave to amend. Motion to strike is moot.

Plaintiff may file and serve an amended complaint within
20 days of the issuing of this order.

Plaintiff to give notice.

[1] Defendant Hill later withdrew Paragraph
40 from her motion in her Reply. (Reply
at p. 4:2-11.)